

Issued By: img on 6-17-26.
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: ***Perry-Lara v. Bhandal***
Superior Court Case No. 23CECG04312

Hearing Date: June 18, 2026 (Dept. 502)

Motion: By Defendants for Terminating Sanctions

**If oral argument is timely requested, it will be entertained on
Thursday, June 25, 2026, at 3:30 p.m. in Department 502.**

Tentative Ruling:

To grant the request for terminating sanctions. (Code Civ. Proc., § 2030.290, subd. (c).) To strike plaintiff's complaint and dismiss the action against defendants Jagrup Singh Bhandal and JGB Properties, Inc., doing business as Abby Arco. Defendants shall submit a proposed judgment consistent with the Court's order within 10 days.

Explanation:

Once a motion to compel discovery is granted, continued failure to comply may support a request for more severe sanctions. Code of Civil Procedure section 2023.010, subdivision (g), makes "[d]isobeying a court order to provide discovery" a "misuse of the discovery process," but sanctions are only authorized to the extent permitted by each discovery procedure. For failure to obey the court's discovery orders, the court may:

"[M]ake those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)..."

(Code Civ. Proc. §§ 2025.450, subd. (d) [depositions]; 2030.290, subd. (c) [interrogatories]; and 2031.300, subd. (c) [production demands].)

On June 4, 2025, defendants propounded discovery on plaintiff. Following a meet and confer correspondence, an extension was granted to July 23, 2025 for the responses. None were provided. On December 10, 2025, the Court ordered plaintiff to respond to the discovery and pay \$320 in sanctions. Plaintiff has failed to do either nor has she opposed this motion.

There is evidence that plaintiff has engaged in misuse of the discovery process. Lesser sanctions have proven ineffective in compelling plaintiff to comply with the discovery requests. There is no indication that any more time or any lesser sanction will result in plaintiff responding to the outstanding discovery or complying with the prior court

orders. Therefore, the Court dismisses plaintiff's complaint pursuant to Code of Civil Procedure section 2023.030, subdivision (d)(1).

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 6-17-26
(Judge's initials) (Date)